

23AVCV01026 23AVCV01026

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Case Number: 23AVCV01026 Hearing Date: September 17, 2026 Dept: A15

BEAD v. HAWATMEH et al.

Defendant

Hayel Hawatmeh's Motion for Summary Adjudication

Defendant Hayel Hawatmeh, doing business as Harry's Mobil Mart (Harry's), moves for summary adjudication of plaintiff Kemon Bead's claim for punitive damages. The motion is scheduled for hearing on September 17, 2026, at 8:30 a.m. in Department A15. The Court has reviewed the moving, opposition, and reply papers, including the separate statements, declarations and exhibits, requests for judicial notice, and evidentiary objections and responses. The Court tentatively denies the motion.

DISPOSITION

1. Defendant Hayel

Hawatmeh's motion for summary adjudication of plaintiff's claim for punitive damages is DENIED.

2. Defendant's request

for judicial notice of exhibits 1 through 6 is GRANTED as to the existence, filing, and contents of the court records, including the allegations made. Judicial notice does not establish the truth of disputed factual assertions in those records.

3. Plaintiff's request

for judicial notice of the federal agency materials attached as exhibits 4 through 7 and 9 to the declaration of Alex Farzan filed August 28, 2026, is

GRANTED as to their existence and publication. The Court does not judicially notice the truth of disputed factual assertions, defendant's receipt or knowledge of the publications, or the ingredients of the pill plaintiff allegedly ingested.

4. The Court does not rule on plaintiff's evidentiary objections Nos. 1 through 4 or defendant's evidentiary objections Nos. 1 through 7 because they are not material to the disposition. Those objections are preserved under Code of Civil Procedure section 437c, subdivision (q).

REASONS

A. Background and governing standard

Plaintiff alleges that he purchased a Special Rhino Gold 18000 male-enhancement pill at Harry's, ingested it, and suffered a prolonged erection and other complications requiring surgery. He seeks compensatory and punitive damages. (Second Amended Complaint, ¶¶ 1, 4-6, 15.) The present motion addresses only punitive damages against Hayel Hawatmeh. It does not request adjudication of the underlying causes of action or of the claims against New Rainbow LLC.

A claim for punitive damages may be resolved by summary adjudication if the motion completely disposes of that claim. (Code Civ. Proc., § 437c, subd. (f)(1).) Defendant bears the initial burden of showing that a necessary element cannot be established or that a complete defense applies. Only then must plaintiff demonstrate a triable issue. (Id., subd. (p)(2).) A defendant relying on an asserted absence of evidence must support that position with evidence; the defendant cannot shift the burden merely by arguing that plaintiff has not proved the claim. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854-855.)

Civil Code section 3294, subdivision (a), requires clear and convincing evidence of oppression, fraud, or malice. The Court considers that heightened burden in deciding whether the evidence permits a reasonable trier of fact to find for plaintiff, without weighing credibility or resolving conflicting evidence. (Basich v. Allstate Ins. Co. (2001) 87 Cal.App.4th 1112, 1121; Butte Fire Cases (2018) 24 Cal.App.5th 1150, 1158-1159.) The heightened standard does not dispense with defendant's initial showing.

Malice includes despicable conduct carried on with a willful and conscious disregard of another's rights or safety. (Civ. Code, § 3294, subd. (c)(1).) Ordinary negligence, even serious negligence, does not suffice. The conduct must meet the statutory requirements of willfulness and despicability. (College Hospital Inc. v. Superior Court (1994) 8 Cal.4th 704, 725.) Liability of an employer for an employee's conduct also requires the showing specified in section 3294, subdivision (b), discussed below.

B. Whether Harry's sold the pill remains disputed

Defendant's declaration denies that Harry's ever sold Special Rhino Gold 18000 and states that the store has no records of ordering or selling it. (Hawatmeh Decl., ¶ 9.) Shadi Hawatmeh likewise denied that the store sold the product. (Defendant's Compendium of Evidence, Ex. B, Shadi Hawatmeh Dep. 22:4-15.) Plaintiff, however, testified that he purchased the pill at Harry's and identified the product in photographs. He explained that he paid cash and did not receive a receipt. (Id., Ex. D, Bead Dep. 27:19-24, 33:14-34:4, 34:18-35:1, 35:11-18.)

That conflict cannot be resolved on this motion. Plaintiff's firsthand account is evidence of the sale. The absence of a receipt and defendant's contrary testimony and inventory evidence may bear on its weight, but do not conclusively disprove it. Even considering all of defendant's challenged evidence, the Court would have to choose between competing accounts to find that Harry's did not sell the pill. Summary adjudication cannot rest on that credibility determination. (Code Civ. Proc., § 437c, subd. (c).)

C. The testimony about safety does not establish an absence of malice

Defendant emphasizes that Shadi had received no information that the pills contained sildenafil, had received no prior injury complaint, and had received no FDA notice concerning their harmful effects. That evidence supports defendant's position, but it does not exhaust the record. Shadi testified that he managed the store, alone decided which products to purchase for resale, and had made no effort to learn the ingredients of the male-enhancement products. (Farzan Decl., filed Aug. 28, 2026, Ex. 1, Shadi Hawatmeh Dep. 14:15-24, 27:17-28:8, 29:20-30:2, 31:13-24.)

More significantly, Shadi testified that he did not believe the male-enhancement pills were safe for human consumption, but continued to sell them. Asked why, he answered, "People want them. So I buy them." He also testified that he would continue to sell the pills while customers wanted them. (Farzan Decl., Ex. 1, Shadi Hawatmeh Dep. 30:11-31:12, 32:3-6.) A failure to investigate ingredients, standing alone, would not establish malice. A deliberate decision to sell products actually believed unsafe presents a different question. The testimony permits an inference of a conscious choice to expose customers to a perceived danger in order to continue sales.

There are limits to that inference. Shadi gave the testimony in June 2024, and did not expressly say that he held the same belief when plaintiff allegedly purchased the pill in May 2022. He also denied selling Special Rhino Gold 18000. His testimony therefore is not a direct admission that he knowingly sold this particular pill with a dangerous ingredient in May 2022. Shadi also testified that Harry's sold male-enhancement pills at the time of the alleged May 2022 incident and continued to sell them. (Farzan Decl., Ex. 1, Shadi Hawatmeh Dep. 22:1-6, 28:22-25.) His description of those practices, considered with plaintiff's testimony identifying the purchase, permits competing inferences concerning his awareness and conduct. Defendant's evidence concerning ingredient knowledge, complaints, and FDA warnings does not establish that plaintiff cannot prove the asserted safety concern existed when the alleged sale occurred.

In *G. D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 32-33, the court distinguished conscious disregard from allegations that a manufacturer knew unspecified products of the same type might cause injury. That distinction matters here. The Court does not infer malice merely because a retailer should have investigated or knew that products of this type might pose some risk. The pertinent evidence is Shadi's professed belief that the products he chose to sell were unsafe for human consumption, coupled with his explanation for continuing those sales. If credited and found applicable to the alleged transaction, that evidence could support a finding of willful and despicable disregard under the clear-and-convincing standard. Lack of knowledge of the precise ingredient or absence of an earlier complaint does not conclusively negate that inference.

D. The moving showing does not resolve Hayel Hawatmeh's liability as an individual employer

Shadi's state of mind is not automatically Hayel's.

Civil Code section 3294, subdivision (b), limits an employer's punitive liability for an employee's conduct to circumstances in which the employer had advance knowledge of the employee's unfitness and employed the employee with conscious disregard of others' rights or safety, authorized or ratified the wrongful conduct, or was personally guilty of oppression, fraud, or malice. The additional officer, director, or managing-agent requirement in the subdivision's second sentence concerns corporate employers. Hayel operates Harry's as a sole proprietorship. (Hawatmeh Decl., ¶¶ 1-3.) Shadi's management role therefore does not, by itself, establish Hayel's punitive liability.

Plaintiff relies on Hayel's delegation of purchasing authority to Shadi. But authorization to purchase inventory generally is not equivalent to knowing authorization or ratification of wrongful conduct. Ratification requires approval or adoption with knowledge of the conduct's wrongful nature. (College Hospital Inc., supra, 8 Cal.4th at p. 726.) The Court does not find that delegation alone satisfies Civil Code section 3294, subdivision (b), or that plaintiff has established Hayel's personal culpability.

The difficulty with defendant's motion is the antecedent burden. Hayel's declaration describes shared supervision and management, Shadi's responsibility for selecting and purchasing products, and inventory decisions made by Hayel and others he hired, including Shadi. (Hawatmeh Decl., ¶¶ 5, 8, 10.) It does not deny advance knowledge of unfitness, knowing authorization or ratification of wrongful conduct, or personal malice. Its material factual denial is that the store ever sold the particular product. (Id., ¶ 9.) That denial is disputed for the reasons already explained.

Nor does defendant identify discovery establishing that plaintiff lacks and cannot reasonably obtain evidence of the employer connection required by Civil Code section 3294, subdivision (b). The moving evidence does not establish the absence of that connection merely by describing the division of ordinary business responsibilities. The reply correctly distinguishes an individual employer from a corporation, but a correct

statement of the governing law does not substitute for the initial evidentiary showing. (Aguilar, supra, 25 Cal.4th at pp. 854-855.)

Accordingly, shortcomings in plaintiff's present proof of Hayel's personal involvement do not independently warrant adjudication on this record. Plaintiff retains the burden of proving the statutory employer connection at trial.

E. The remaining arguments and evidentiary requests do not change the result

Defendant also relies on plaintiff's earlier experience with a different male-enhancement product and prior litigation to contest plaintiff's claimed ignorance of the risks and reliance on packaging representations. Even assuming that evidence is admissible and crediting defendant's characterization for purposes of this motion, it does not eliminate the separately pleaded theory of malicious disregard for consumer safety. (Second Amended Complaint, ¶¶ 9-12.) The Court therefore need not decide whether plaintiff can prove fraud to determine that defendant has not established entitlement to adjudication of the entire punitive damages claim.

Plaintiff's reliance on the earlier order permitting amendment likewise does not determine this motion. Permission to plead punitive damages does not establish evidentiary sufficiency under the summary adjudication standard. The present result rests on the parties' evidentiary showing and the allocation of burdens under Code of Civil Procedure section 437c.

The court records and federal agency publications are judicially noticed only within the limits stated in the disposition. (Evid. Code, § 452, subds. (c), (d).) Their existence does not establish disputed facts, prove defendant saw an agency warning, or establish the contents of plaintiff's pill. The denial does not depend on the truth of those publications or on the challenged packaging evidence. It also remains the same if all evidence challenged by plaintiff is considered. The identified evidentiary objections therefore are not material to the disposition, and the Court declines to rule on them under Code of Civil Procedure section 437c, subdivision (q).

The material disputes concern whether Harry's sold the pill and whether the sales conduct reflected the conscious disregard described above. In addition, defendant has not carried the initial burden necessary to shift to plaintiff the obligation to establish a triable issue concerning Hayel's individual-employer liability. The motion is denied. This

ruling does not determine that punitive damages will be recoverable at trial.

To submit without oral argument, all parties must follow the Department's "Submitting on a Tentative Ruling" instructions. Only one joint email may be sent. Do not telephone the courtroom. If the parties do not unanimously agree to submit, any party may appear at the scheduled hearing without advance notice.